

STATE OF NEW YORK

409--A

Cal. No. 630

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. SKOUFIS, HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the alcoholic beverage control law, in relation to permitting certain retail licensees to purchase wine and liquor from certain other retail licensees

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 106 of the alcoholic beverage control law is
2 amended by adding a new subdivision 2-b to read as follows:

3 2-b. Notwithstanding any provision of this chapter to the contrary, a
4 retail licensee for on-premises consumption shall be authorized to
5 purchase up to six bottles of wine or liquor in the aggregate per week
6 from an off-premises retail licensee, and may resell any wine and liquor
7 so purchased for consumption on the premises licensed therefor.

8 § 2. Section 105 of the alcoholic beverage control law is amended by
9 adding a new subdivision 2 to read as follows:

10 2. (a) Notwithstanding any provision of this chapter to the contrary,
11 a retail licensee to sell liquor and/or wine for consumption off the
12 premises shall be authorized to sell up to six bottles of wine or liquor
13 in the aggregate per week to a retail licensee for on-premises consump-
14 tion.

15 (b) Both the retail licensee for on-premises consumption and the
16 retail licensee for off-premises consumption shall retain evidence of
17 each purchase of wine and liquor from a retailer licensed to sell liquor
18 and/or wine for consumption off the premises in the form of a purchase
19 receipt showing the name of the retailer, the date of purchase, a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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description of the alcohol beverages purchased, and the price paid for the alcohol beverages. The retail licensee for on-premises consumption and the retail licensee for off-premises consumption shall retain the receipt and make it available for inspection by the state liquor authority and its duly authorized agents and employees.

§ 3. This act shall take effect on the ninetieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.